

*La.* There is an accurate Definition of a Law in *Bracton*, cited by Sir *Ed. Coke*, *Lex est sanctio justa, jubens honesta, & prohibens contraria.*

*Pb.* That is to say, Law is a just Statute, commanding those Things which are honest, and forbidding the contrary. From whence it followeth, that in all Cases it must be the Honesty or Dishonesty that makes the Command a Law, whereas you know that but for the Law we could not (as saith *St. Paul*) have known what is Sin; therefore this Definition is no Ground at all for any farther Discourse of Law. Besides, you know the Rule of Honest and Dishonest refers to Honour, and that it is Justice only, and Injustice, that the Law respecteth. But that which I most except against in this Definition, is, that it supposes that a Statute made by the Sovereign Power of a Nation may be unjust. There may indeed in a Statute Law, made by Men, be found Iniquity, but not Injustice.

*La.* This is somewhat subtil; I pray deal plainly; what is the Difference between Injustice and Iniquity?

*Pb.* I pray you tell me first, what is the Difference between a Court of Justice, and a Court of Equity?

*La.* A Court of Justice is that which hath Cognizance of such Causes as are to be ended by the positive Laws of the Land; and a Court of Equity is that, to which belong such Causes as are to be determined by Equity; that is to say, by the Law of Reason.

*Pb.* You see then that the Difference between Injustice and Iniquity is this; that Injustice is the Transgression of a Statute-Law, and Iniquity the Transgression of the Law of Reason, and that the Judges of that Law are Courts of Justice, because the Breach of the Statute-Law is Iniquity, and Injustice also. But perhaps you mean by Common Law, not the Law itself, but the Manner of proceeding in the Law (as to Matter of Fact) by twelve Men, Freeholders, though those twelve Men are no Court of Equity, nor of Justice, because they determine not what is just or unjust, but only whether it be done or not done; and their Judgment is nothing else but a Confirmation of that which is properly the Judgment of the Witnesses; for to speak exactly, there cannot possibly be any Judge of Fact besides the Witnesses.

*La.* How would you have a Law defined?

*Pb.* Thus; A Law is the Command of him, or them that have the Sovereign Power, given to those that be his or their Subjects, declaring publicly and plainly what every of them may do, and what they must forbear to do.

*La.* Seeing all Judges in all Courts ought to judge according to Equity, which is the Law of Reason, a distinct Court of Equity seemeth to me to be unnecessary, and but a Burthen to the People, since Common Law and Equity are the same Law.

*Pb.* It were so indeed, if Judges could not err; but since they may err, and that the King is not bound to any other Law but that of Equity, it belongs to him alone to give Remedy to them, that by the Ignorance or Corruption of a Judge shall suffer Damage.

*La.* By your Definition of a Law, the King's Proclamation under the Great Seal of *England* is a Law; for it is a Command, and public, and of the Sovereign to his Subjects.

*Pb.* Why not, if he think it necessary for the Good of his Subjects? For this is a Maxim at the Common Law alledged by Sir *Edward Coke* himself, 1 *Inst.* 306. *Quando Lex aliquid concedit, concedere videtur & id per quod devenitur ad illud.* And you know out of the same Author, that divers Kings of *England* have often, to the Petitions in Parliament which they granted, annexed such Exceptions as these, unless there be Necessity; saving our Regality; which I think should be always understood, though they be not expressed; and are understood so by Common Lawyers, who agree that the King may recall any Grant wherein he was deceived.

*La.* Again, whereas you make it of the Essence of a Law to be publicly and plainly declared to the People, I see no Necessity for that. Are not all Subjects bound